

# HOUSE . . . . . No. 2392

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## The Commonwealth of Massachusetts

PRESENTED BY:

*Marjorie C. Decker and Hannah Kane*

*To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:*

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to autopsy reports by the medical examiner.

PETITION OF:

| NAME:                        | DISTRICT/ADDRESS:       | DATE ADDED:      |
|------------------------------|-------------------------|------------------|
| <i>Marjorie C. Decker</i>    | <i>25th Middlesex</i>   | <i>1/17/2025</i> |
| <i>Hannah Kane</i>           | <i>11th Worcester</i>   | <i>1/23/2025</i> |
| <i>Bradley H. Jones, Jr.</i> | <i>20th Middlesex</i>   | <i>1/30/2025</i> |
| <i>Michael O. Moore</i>      | <i>Second Worcester</i> | <i>4/7/2025</i>  |
| <i>Sean Garballey</i>        | <i>23rd Middlesex</i>   | <i>4/7/2025</i>  |
| <i>Estela A. Reyes</i>       | <i>4th Essex</i>        | <i>5/28/2025</i> |

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By Representatives Decker of Cambridge and Kane of Shrewsbury, a petition (accompanied by bill, House, No. 2392) of Marjorie C. Decker, Hannah Kane and Bradley H. Jones, Jr. relative to autopsy reports by the medical examiner. Public Health.

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## The Commonwealth of Massachusetts

\_\_\_\_\_  
In the One Hundred and Ninety-Fourth General Court  
(2025-2026)  
\_\_\_\_\_

An Act relative to autopsy reports by the medical examiner.

*Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:*

1           SECTION 1. (a) Section 4 of chapter 38 of the General Laws, as appearing in the 2022  
2           Official Edition, is hereby amended by adding the following paragraph:-

3           If the medical examiner takes jurisdiction pursuant to this section, the medical examiner  
4           shall conduct an autopsy on the body of such deceased person and provide an autopsy report to  
5           anyone legally entitled to receive it within 90 days of the date that the medical examiner took  
6           jurisdiction, except if the medical examiner provides a notice of delay to anyone legally entitled  
7           to receive the autopsy report with the date the autopsy report will be complete and the reason for  
8           the delay.

9           (b) Not later than December 31 of each even-numbered year, the medical examiner shall  
10          submit to the clerks of the house of representatives and the senate, and the joint committee on  
11          public health, a report, including, but not limited to:

12           (i) the number of autopsies completed within 90 days of the date that the medical  
13 examiner took jurisdiction;

14           (ii) the number of autopsies that were not completed within 90 days of the date that the  
15 medical examiner took jurisdiction; and

16           (iii) the reasoning behind why the autopsies were not completed within said 90 days of  
17 the date that the medical examiner took jurisdiction.